

2:00 PM

LINE 3

24-CIV-05601

CORRINA RENTERIA AQUINO VS. DAVID ANDREAS FUCHS, ET AL.

CORRINA RENTERIA AQUINO
DAVID ANDREAS FUCHSPETER W. DANIEL
DEBORAH A. STEVENS

MOTION FOR LEAVE TO FILE LATE COMPULSORY CROSS-COMPLAINT

TENTATIVE RULING:

The court GRANTS defendant David Fuch's motion to file a cross complaint.

Code of Civil Procedure Section 428.10, subdivision (b) provides that a party against whom a cause of action has been asserted may file a cross-complaint setting forth: "(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. § 428.10, subd. (b).)

"If a party does not file a cross-complaint against its opponent "before or at the same time as the answer" (Code Civ. Proc., § 428.50, subd. (a)), that party "shall obtain leave of court" to file one (*id.*, subd. (c)). (See 5 Witkin, *Cal. Procedure* (5th ed. 2008) Pleading, § 1168, pp. 599-601.)" (*Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 295.) "Leave may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc. § 428.50, subd. (c).) Similarly,

[a] policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.

(*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–99.)

Plaintiff argues that defendant is acting in bad faith because he knew of the cause of action much earlier than the date stated in defendant's declaration. The court does not find any bad faith by defendant. While defendant may have known of facts earlier than he asserts, that factual finding is not something that can be decided on a motion for leave to file a cross-complaint or probably even on a demurrer. It is an extensive factual determination. Instead the court is guided by the policy that cases should be decided on the merits and that this cross-complaint is compulsory, meaning that the claims are lost if the court denies defendant the right to assert the cross-

complaint. Plaintiff has demonstrated no prejudice and trial has not been set. The court expects defendant to voluntarily sit for another deposition (limited to the issues in the cross-complaint which have not been the subject of testimony in the first deposition). The court finds that the interests of justice will be served by allowing this cross-complaint.

Defendant shall file the proposed cross-complaint attached as Exhibit 2 to the declaration of Maria-Vittoria G. Carminati within ten days of notice of entry of order. It is not deemed filed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CLJ-06163

LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY
PAUL NARCISSE

JOSETTE D JOHNSON

HEARING TO DETERMINE HOW TO DISTRIBUTE THE DEPOSITED FUNDS

TENTATIVE RULING:

The Court holds its repeatedly noticed Hearing to Determine How to Distribute the Deposited Funds.

Background

According to the allegations in the complaint, Plaintiff believes that Defendants Paul and Rina Narcisse were the buyers and Defendants David Stariha and Bernadette Romero were the sellers in a real estate transaction concerning realty located at 5631 Cloverdale Road, Pescadero, California 94060, related to which it held \$17,500.00 (the “Funds”) in escrow. Since Plaintiff received no mutual instructions as to the disposition of the Funds, it could not determine who should receive them and brought this action, claiming no interest therein beyond its attorney’s fees and costs incurred in doing so.

The Court ordered that Plaintiff be allowed to deposit the Funds with the Court, and that they be placed in an interest-bearing account (Code Civ. Proc., § 386.1). (Order, filed on October 4, 2024.)

Plaintiff requested and the Clerk entered defaults against Defendants Narcisse on October 24, 2025. At the hearing on Plaintiff’s Motion for Order Discharging Stakeholder from Liability; and Award of Attorneys Fees and Costs, which no party attended, the Court adopted its Tentative Ruling granting the motion, and set the instant hearing as follows:

Additionally, the court sets a hearing to determine how to distribute the deposited funds for September 22, 2026 at 2:00 p.m. in Department 4. Pursuant to Civil Code section 2924j, subdivision (d), the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. The court will consider all claims filed at least 15 days before this hearing.

(Minute Order, June 23, 2026 (the “Minute Order”).) The next day, the Court served notice of the Minute Order and an Affidavit of Service upon Plaintiff’s counsel at their email addresses of record, upon Defendants Stariha and Romero at their addresses of record, and despite their having defaulted (Code Civ. Proc., § 1014 (“Where a defendant has not appeared, service of
